

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JONATHAN VEGA,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, CAPTAIN PETER ANDREA, and POLICE OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN (names and number of whom are unknown at present, and other unidentified members of the New York City Police Department),

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 10, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, 34th Precinct, 4295 Broadway, New York, NY 10033
CAPTAIN PETER ANDREA, 34th Precinct, 4295 Broadway, New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JONATHAN VEGA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, CAPTAIN PETER ANDREA, and POLICE OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN (names and number of whom are unknown at present, and other unidentified members of the New York City Police Department),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff JONATHAN VEGA, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 11, 2016, at approximately 3:00 p.m., plaintiff Jonathan Vega, while lawfully present in the vicinity of 115th Street and 3rd Avenue, New York, New York, was subject to the an unlawful search, and false arrest/ imprisonment by the defendant New York City police officers. Additionally, plaintiff was subjected to the use of excessive force by the defendant police officers when they tackled and slammed plaintiff to the ground and handcuffed plaintiff in an excessively tight manner and refused to loosen the handcuffs causing permanent physical injuries to plaintiff. Thereafter, plaintiff was maliciously prosecuted and denied the right to due process/ right to a fair trial in Manhattan Criminal Court when he was charged and prosecuted for committing crimes he did not commit, without probable cause and based upon the false, misleading and incomplete facts and evidence provided to the New York County District Attorney's Office by the defendant police officers. All criminal charges brought against plaintiff were dismissed and sealed on or about September 7, 2016 after the District Attorney's office affirmatively moved to have the criminal charges dismissed because it was "unable to find any evidence" that it was plaintiff who committed the crimes he was charged with committing. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, confined, falsely arrested, maliciously prosecuted,

denied plaintiff the right to due process/ right to a fair trial and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff JONATHAN VEGA is a resident of the state of New York.

3. Defendant POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, is and was at all times relevant herein, assigned to 34th Precinct.

5. Defendant POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, is being sued in his individual and official capacity.

6. Defendant CAPTAIN PETER ANDREA is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant CAPTAIN PETER ANDREA is and was at all times relevant herein, assigned to 34th Precinct.

8. Defendant CAPTAIN PETER ANDREA is being sued in his individual and official capacity.

9. New York City Police Officers John Does numbers one through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does numbers one through ten are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The

City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On June 11, 2016, at approximately 5:30 p.m., plaintiff was lawfully present in the vicinity of 115th Street and 3rd Avenue, New York, New York.

16. By way of background, on June 11, 2016 at approximately 3:00 p.m. plaintiff was lawfully present in the vicinity of 115th Street and 3rd Avenue, New York, New York attending the Annual Puerto Rican Day Parade when a violent fight involving individuals that plaintiff did not know broke out near where plaintiff was standing.

17. An unknown individual punched plaintiff from behind in plaintiff's face and jaw causing plaintiff to bleed from his lip, and become dizzy for several minutes.

18. When plaintiff was no longer dizzy he began screaming for help and inquiring about who punched him in the face.

19. Upon information and belief another individual attending the parade was stabbed by an unknown individual when the fight broke out in the vicinity of 115th Street and 3rd Avenue.

20. The police responded to the location where the fight broke out in the vicinity of 115th Street and 3rd Avenue and spoke with the man that was stabbed during the fight. The man informed the police that he could not identify the man who stabbed him and admitted to the police that he was the initial aggressor in the fight between him and the man that stabbed him and that he was significantly taller and heavier than the individual that stabbed him.

21. At no time relevant herein did plaintiff participate in the fight in any way or assault or physically harm any individual.

22. At no time relevant herein did plaintiff commit any crime, nor did any reasonable police officer have an objective factual basis to believe that plaintiff committed any crime.

23. At no time relevant herein did the individual that was stabbed accuse plaintiff of being the person that stabbed him.

24. The defendant police officers observed plaintiff bleeding from his lip and inquiring about who punched him while the defendant police officers were speaking with the individual who was stabbed.

25. The defendant police officers immediately began walking toward plaintiff when they saw him and in response plaintiff raised his hands above his head and advised the officers that he was the victim of an assault and had done nothing wrong.

26. Nevertheless, the defendant police officers subjected plaintiff to the use of excessive force by pushing plaintiff backwards over a guardrail causing plaintiff to fall backwards onto the ground and slam his head into the pavement.

27. The defendant police officers slammed plaintiff to the ground, placed their knees into plaintiff's back in an excessively forceful manner, causing plaintiff to suffer extreme pain in his neck and back.

28. The defendant police officers unlawfully searched plaintiff without legal justification or probable cause.

29. At no time relevant herein did the defendant police officers recover any illegal weapons, drugs, or contraband of any kind from plaintiff's possession.

30. Plaintiff advised the police officers that he had a legal box cutter in his pocket that he used at work.

31. The defendant police officers removed the box cutter from plaintiff's possession.

32. The box cutter did not have any blood on it and was not the right size to have caused the injuries to the man who was stabbed.

33. The box cutter was later tested to determine whether there was any DNA on the box cutter from the man who was stabbed and the results of the tests were negative.

34. The defendant police officers did not possess any objective evidence that established that plaintiff was the person who stabbed the other individual.

35. However, upon removing the box cutter from plaintiff's possession the defendant police officers celebrated and gave each other high fives because they incorrectly and without any objective factual basis concluded that the box cutter in plaintiff's possession must have been the "weapon" used to stab the other man.

36. The defendant police officers falsely arrested plaintiff and unlawfully handcuffed plaintiff without probable cause or legal justification.

37. While plaintiff was laying on the ground in handcuffs and completely defenseless, the defendant officers pushed their knees into plaintiff's neck in forceful manner, causing pain and injuries to plaintiff.

38. At no time did plaintiff act in a physically threatening manner nor did the defendant officers have any objective reason to believe that plaintiff was physically threatening them or that they had reason to use force against him.

39. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer severe pain and discomfort and caused his wrists to bleed.

40. Plaintiff told the defendant police officers that the handcuffs were too tight, were hurting his wrists, and he asked the defendant police officers to loosen the handcuffs, but the defendant police officers ignored plaintiff and refused to loosen the handcuffs.

41. The unreasonably tight handcuffs were the direct and proximate cause of the serious physical injuries to plaintiff's wrists.

42. Plaintiff was then transported by the defendant police officers to the 25th Precinct, where he was photographed, fingerprinted, searched, and placed in a holding cell.

43. At the precinct, plaintiff requested medical attention for the injuries to his face and wrists, which were bleeding profusely.

44. At approximately 9:00 p.m. on June 11, 2016 EMS responded to the precinct and treated plaintiff for the injuries to his face and wrists.

45. On June 12, 2016 at approximately 3:00 a.m., after approximately 9 hours in custody, plaintiff was transported from the 25th Precinct to New York County Central Booking and detained in several holding cells.

46. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

47. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff, without probable cause.

48. On June 12, 2016, at 7:200 p.m. plaintiff was arraigned in Manhattan Criminal Court and charged with crimes he did not commit and for which the defendant police officers lacked probable cause to accuse him of committing.

49. Plaintiff was unlawfully charged with Assault in the Second Degree and Criminal Possession of a Weapon in the Fourth Degree without probable cause.

50. At arraignment bail was set at \$20,000, and plaintiff was unable to post bail at that time.

51. Plaintiff was remanded into the custody of the Department of Correction and was detained in the Manhattan Detention Center for 5 days before he was able to post bail and was released from custody.

52. On June 20, 2017, plaintiff went to his primary care doctor for treatment of his head and face injuries and for pain and numbness in his wrists caused by the excessively tight handcuffs applied by the defendant officers.

53. Plaintiff underwent MRIs of his head, neck, back and wrists and was referred to physical therapy to treat his wrist injuries.

54. Plaintiff was given steroid injections to treat the injuries caused to his back and neck.

55. Plaintiff attended physical therapy twice per week for several months following the incident in order to treat the pain, weakness and numbness he continued to experience in his wrists as a result of the excessive force used by the defendant police officers.

56. As result of the excessive force used against plaintiff, plaintiff experienced and continues to experience numbness and decreased strength and range of moment in both of his wrists and was diagnosed with Bilateral Carpal Tunnel Syndrome.

57. Plaintiff also received psychological treatment for the psychological and emotional injuries caused by the defendant police officers by falsely arresting plaintiff, subjecting him to the use of excessive force and maliciously prosecuting him.

58. Thereafter, on September 7, 2016, after being forced to appear in Court on approximately 3 occasions, all charges against plaintiff were dismissed and sealed in their entirety after the District Attorney's Office affirmatively moved to dismiss the charges because, according to the District Attorney's Office "after a thorough investigation that included multiple searches for video and multiple interviews of the complaining witness and other potential eyewitnesses, the People were unable to find *any evidence* that it was, in fact, [plaintiff] who stabbed the complaining witness."

59. Plaintiff also suffered extreme emotional distress, embarrassment and damage to his reputation because the false allegations made by the defendant police officers against plaintiff that he stabbed another individual were reported in the newspaper.

60. The police officer defendants that did not physically touch plaintiff, but observed their fellow officers violate plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to stop and/ or prevent the unlawful violation of plaintiff's Constitutional Rights are liable to plaintiff for their failure to intervene.

61. The unlawful search, false arrest, and false imprisonment, denial of the right to due process/ the right to fair trial, malicious prosecution, and excessive force used against plaintiff by the individually named defendant police officers caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

72. Defendants lacked probable cause to search plaintiff.

73. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

78. Defendants commenced and continued a criminal proceeding against plaintiff.

79. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

80. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

81. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Due Process/ Right to Fair Trial

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein

85. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

86. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

87. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

88. In withholding/creating false evidence against plaintiff Jonathan Vega and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

89. As a result of the foregoing, plaintiff Jonathan Vega, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The use of excessive force by defendants slamming plaintiff to the ground and throwing plaintiff over a guardrail, pushing their knees into plaintiff's neck while he was handcuffed, handcuffing plaintiff in an excessively tight manner, and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

94. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

98. Defendants failed to intervene to prevent the unlawful conduct described herein.

99. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

100. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jonathan Vega demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable costs and attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 10, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER SHELBY HERNANDEZ, Shield No. 11860, 34th Precinct, 4295
Broadway, New York, NY 10033
CAPTAIN PETER ANDREA, 34th Precinct, One Police Plaza, New York, NY, 10038

ATTORNEY'S VERIFICATION

David M. Hazan, Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 10, 2019

/s/
DAVID M. HAZAN, ESQ.